

FEDERAL MARITIME COMMISSION

IGOR OVCHINNIKOV, IRINA
RZAEVA, AND DENIS NEKIPELOV,

Complainants,

KAIRAT NURGAZINOV,

Claimant,

v.

MICHAEL HITRINOV A/K/A
MICHAEL KHITRINOV, AND EMPIRE
UNITED LINES CO. INC.,

Respondents.

Consolidated Docket Nos.
15-11 & 1953(I)

Served: May 11, 2022

BY THE COMMISSION: Daniel B. MAFFEI, Chairman,
Rebecca F. DYE, Louis E. SOLA, Carl W. BENTZEL, Max M.
VEKICH, Commissioners.

Order Requiring the Parties to Supplement the Record

Before the Commission in this consolidated action are:
(i) Respondents' Counsel's Exceptions to the "Presiding Officer's []

Decision Not to Consider Disciplinary Action Against Complainants' Counsel" (Doc. 128) and his petition for leave to supplement these exceptions (Doc. 145); and (ii) Complainants' Exceptions to the Initial Decision Granting Respondents' Motion for Judgment on the Pleadings (Doc. 173).

Respondents' Counsel—and the Administrative Law Judge, in his Initial Decision—raise serious concerns regarding, among other things, the authenticity of key documents on which Complainants rely. *See, e.g.*, Resp'ts' Counsel's Mot., Doc. 112 at 4-8; *id.* at App. A; Initial Decision, Doc. 152 at 55-58. Thus far, Complainants' Counsel has not directly addressed the bulk of these allegations. *See, e.g.*, Complainants' Cross-Mot., Docs. 114 and 115 (failing to oppose Respondents' Counsel's motion and filing instead a cross-motion for disciplinary action, void of any sworn denials or statements); *see also* Complainants' Resp. to Resp'ts' Counsel's Exceptions, Docs. 129 and 130 (largely restating Complainants' Counsel's position that it is Respondents' Counsel who committed misconduct).¹

Additionally, at least one document on which Complainants rely has apparently not been translated from its original, foreign language into English. *See* Doc. 152 at 45 n.21.

Both parties are also directed to file brief statements, not to exceed five pages, indicating whether there exists any newly-issued precedent (Commission or otherwise) that impacts their arguments.

Accordingly, the Commission **HEREBY ORDERS** as follows:

- 1) Respondents' Counsel's Petition for Leave to Supplement Exceptions of Respondents' Counsel to the Presiding Officer's September 16 Decision Not to Consider

¹ Complainants did not file exceptions to the Administrative Law Judge's denial of the parties' cross-motions. Accordingly, Complainants' cross-motion for disciplinary action is not before the Commission.

Disciplinary Action Against Complainants' Counsel (Doc. 145) is **GRANTED**;

- 2) Complainants' Counsel, Mr. Marcus A. Nussbaum and Mr. Seth M. Katz, are **ORDERED** to respond, by July 11, 2022 and by sworn statement, to Respondents' Counsel's assertions regarding their alleged violations of: the American Bar Association's Model Rules of Professional Conduct 3.3(a)(3) and 3.4(a) regarding falsified evidence; Rule 1.9(c) regarding information obtained by virtue of having previously represented non-parties Sergey Kapustin and/or the businesses that he controlled, known as the Global entities; and Rule 1.8(b) regarding the use of information to disadvantage a client. In their sworn statements, Messrs. Nussbaum and Katz may additionally respond to any other alleged violation of the Model Rules and/or the Commission's Rules, raised in Respondents' Counsel's Motion and Exceptions. If Messrs. Nussbaum or Katz are unable to file such sworn statements, they should so inform the Commission, in writing, setting forth their reasons;
- 3) The parties are **ORDERED**, by July 11, 2022, to properly translate all foreign-language documents on which they respectively rely. Specifically, for all documents translated from a foreign language into English, counsel are ordered to certify that the documents on which they respectively rely were translated by an individual qualified to do the translation. Any documents not properly translated and certified are at risk of exclusion from the record;
- 4) The parties are **ORDERED**, by July 11, 2022, to each provide a brief statement, not to exceed five pages, informing the Commission as to whether they are withdrawing any of their pending motions or exceptions, and, if not, specifically stating all forms of relief that they seek in Docs. 1 and 73 and Docs. 112 and 128, respectively. With these statements, the parties may further identify, by

pincite, for the Commission any new, *i.e.*, issued post-pending exceptions and responses thereto, Commission or Article III precedent that the parties maintain impact their arguments; and

- 5) Any filings submitted that are not in accordance with this Order will be summarily stricken.

By the Commission.

William Cody
Secretary